

Reference Services in the Library

Lesson 8: Ethics and Confidentiality

Ethics and Confidentiality – Study Notes

Key Concepts

1. **Privacy vs. Confidentiality** – Understanding the difference between protecting personal information (privacy) and the duty to keep information shared in confidence secret (confidentiality).
2. **Professional Ethical Standards** – Core principles (e.g., honesty, integrity, respect, responsibility) that guide reference work.
3. **Legal Obligations** – Basic laws and regulations that affect information handling (e.g., GDPR, HIPAA, FERPA).
4. **Informed Consent & Disclosure** – When and how to obtain consent before sharing or using patron information.
5. **Boundaries & Conflict of Interest** – Recognizing situations where personal bias or external pressures could compromise ethical behavior.

Summary

Ethics and confidentiality are the backbone of trustworthy reference services. Librarians and information professionals must balance the patron's right to privacy with the organization's legal and policy obligations. This begins with a clear grasp of what constitutes private data (e.g., names, contact details, borrowing history) and what is considered confidential information (e.g., research inquiries, unpublished manuscripts).

Professional codes of ethics—such as the **ALA Code of Ethics**—provide a framework for decision making, emphasizing honesty, respect for intellectual freedom, and the duty to protect patron information. Legal statutes like the **General Data Protection Regulation (GDPR)** in the EU, **Health Insurance Portability and Accountability Act (HIPAA)** in the U.S., and **Family Educational Rights and Privacy Act (FERPA)** for students further define the limits of data collection, storage, and disclosure.

In practice, maintaining confidentiality involves obtaining informed consent before sharing any patron data, limiting access to only those who need it, and using secure systems for storage and transmission. When conflicts arise—such as a request from law enforcement or a potential breach of intellectual freedom—professionals must weigh ethical obligations against legal requirements, often consulting supervisors or ethics committees before acting.

Important Points

- **Privacy vs. Confidentiality**
 - **Privacy**: the patron's right to control personal information.
 - **Confidentiality**: the professional duty to keep information shared in confidence secret.
 - **Core Ethical Principles** (ALA Code of Ethics)
1. **Access** – Provide equitable access to information.

2. **Intellectual Freedom** – Resist censorship.
3. **Privacy & Confidentiality** – Protect patron records.
4. **Professionalism** – Act with honesty and integrity.
 - **Legal Frameworks**
 - **GDPR** – Requires explicit consent, right to be forgotten, breach notification within 72 /hrs.
 - **HIPAA** – Protects health related information; only disclose with patient consent or as required by law.
 - **FERPA** – Governs student education records; parents/eligible students have rights to inspect and amend records.
 - **Informed Consent Checklist**
 - Explain what data will be collected and why.
 - State who will have access and how it will be used.
 - Offer the option to decline or limit sharing.
 - Document the consent (written or electronic).
 - **Secure Handling Practices**
 - Use encrypted connections (HTTPS, VPN).
 - Store data on password protected, access controlled systems.
 - Regularly update software and conduct privacy audits.
 - **When Disclosure Is Permitted**
 - Legal subpoena or court order (after verifying scope).
 - Immediate risk of harm to the patron or others (e.g., self harm, violent threats).
 - Patron explicitly authorizes release of information.
 - **Conflict of Interest**
 - Disclose any personal, financial, or professional relationships that could influence service.
 - Recuse yourself if impartiality is compromised.

Examples

Example 1 – Handling a Sensitive Research Inquiry

A graduate student asks for assistance locating articles on a controversial medical condition. The student mentions they are working on a personal manuscript.

What to do:

1. Treat the inquiry as confidential; do not record the topic in the public catalog or circulation logs.
2. Offer to provide resources in a private consultation room or via a secure email.
3. If the student requests a copy of a copyrighted article, explain fair use limits and offer interlibrary loan options rather than providing an illegal copy.

Example 2 – Responding to a Law Enforcement Request

Police present a subpoena demanding the borrowing records of a patron suspected of illegal activity.

What to do:

1. Verify the subpoena's authenticity and scope.
2. Consult the library's legal counsel or ethics officer before releasing any information.
3. Provide only the records explicitly requested, redacting any unrelated data.

4. Document the request, the decision process, and the information disclosed.

Quick Review

1. **What is the main difference between privacy and confidentiality?**
2. **Name two legal regulations that affect how libraries handle personal data.**
3. **List three ethical principles from the ALA Code of Ethics that relate to confidentiality.**
4. **When may a librarian ethically disclose patron information without consent?**
5. **What steps should you take when you receive a subpoena for patron records?**

Further Reading

- **American Library Association (ALA) Code of Ethics** – Full text and commentary.
- **"Privacy and Confidentiality in Libraries"** – Journal of Library Administration, 2022.
- **GDPR for Libraries: A Practical Guide** – European Library Association (ELIA) publication.
- **HIPAA Privacy Rule Summary** – U.S. Department of Health & Human Services.
- **FERPA Handbook for School Librarians** – U.S. Department of Education.

Use these notes as a quick reference when evaluating ethical dilemmas or developing privacy policies for your reference service.

